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|     |                                                                            | <p>On May 22, 2026, Creditor submitted a supplement to this motion in which it seeks to add an additional entity as a payment source based on information recently received showing Ms. Finger purportedly holds, and/or has signatory authority and control over a Bluevine business checking account maintained in the name of the additional entity. (See ROA 94.) Given Creditor failed to establish Debtor and Ms. Finger are married or when they were married, as discussed above, Creditor also failed to show this new entity should be added as a payment source. Moreover, statements on information and belief are not sufficient to meet Creditor's evidentiary burden.</p> <p>Based on the foregoing, the motion is <b>DENIED WITHOUT PREJUDICE</b>.</p> <p style="text-align: center;"><b><u>Motion No. 2: Motion for Charging Order</u></b></p> <p>Creditor moves for an order charging Debtor's interest and the interest of his spouse, Ms. Finger, in the same limited liability companies as identified in the motion for assignment order, pursuant to Code of Civil Procedure section 708.310 and Corporations Code section 17705.03.</p> <p>Creditor submitted the same declaration in support of both motions. (See ROA 83 and 88.) The motion for charging order fails for the same reasons discussed above in connection with the motion for assignment order.</p> <p>Based on the foregoing, the motion is <b>DENIED WITHOUT PREJUDICE</b>.</p> <p>Counsel for Creditor is ordered to give notice of these rulings.</p> |
| 13. | <p><b><i>EJVE Limited vs. Happy Lane, LLC</i></b></p> <p>2024-01423726</p> | <p>Before the court are the following two motions filed by plaintiff and judgment creditor EJVE Limited (Creditor): (1) motion for assignment order; and (2) motion for charging order. As more fully set forth below, the motions are <b>DENIED WITHOUT PREJUDICE</b>.</p> <p style="text-align: center;"><b><u>Motion No. 1: Motion for Assignment Order</u></b></p> <p>Creditor moves for an order assigning to Creditor, to the extent necessary to satisfy the judgment entered in this case, the rights of defendant Richard Finger (Debtor) and the community property interests of his alleged spouse Ashley Finger (Ms. Finger) to payments due or to become due from certain sources identified in the notice of motion, pursuant to Code of Civil Procedure section 708.510.</p> <p>As an initial matter, Creditor fails to offer sufficient evidence establishing Debtor and Ms. Finger are married or</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

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|  |  | <p>when they were married. The only evidence Creditor submits to establish the marriage is a copy of what appears to be one page of a rental application which Creditor's counsel, Mr. Sheldon, states was obtained from a subpoena issued to Debtor's landlord. (See Sheldon Decl., ¶ 10 and Ex. H.)</p> <p>Counsel may not properly authenticate that document or establish the necessary foundation. Moreover, the application identifies an "Ashley Finger" under emergency contacts and states the relationship as "wife." (Ex. H.) This unsigned application alone is insufficient to establish Ms. Finger is the spouse of Debtor. It is also unclear whether the "Ashley Finger" identified in the rental application is the same Ashley Finger identified in the Statements of Information produced by Creditor. Creditor offers no discussion showing the individuals are one and the same.</p> <p>Even assuming Ms. Finger and Debtor are married and Ms. Finger is the individual identified in the Statements of Information, there is no argument or evidence showing how Ms. Finger acquired her membership interest in the entities, when she acquired the interests, or when Debtor and Ms. Finger were married. (See Fam. Code, § 760 [community property is all property acquired by a married person during the marriage while domiciled in this state]; § 770 [Property acquired before marriage is the acquiring spouse's separate property, as is the "rents, issues, and profits" of said property].) Thus, simply because Debtor and Ms. Finger allegedly are married does not necessarily mean her membership interest in the entities is community property. Much more information is needed and admissible evidence is needed to establish that information.</p> <p>Additionally, with respect to the Statements of Information purportedly showing Debtor's interest in the entities, it is not clearly shown Debtor is the individual named in the Statements of Information, and again they are not sufficiently authenticated and an adequate foundation is not established. (See Exhs. C-E, G, I.) The Statements of Information contain only a name and address. Further, the exhibits list multiple different addresses in different states for the identified individual. Creditor fails to adequately explain how it ascertained Debtor is the individual identified in the exhibits. In addition, all the entities are out-of-state companies. Although the order may be directed to these entities, it is not clear the order will be enforceable against them unless the court can obtain personal jurisdiction against the entities. (See Ahart, Cal. Prac. Guide:</p> |
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|  | <p>Enforcing Judgments and Debts (The Rutter Group 2026) at 6:1435 [“Such orders would be enforceable against a nonresident third person or assignor, however, only if the person were subject to the California court's personal jurisdiction. [See <i>FirstMerit Bank, N.A. v. Reese</i> (2015) 242 CA4th 408, 413, 195 CR3d 105, 108—Calif. court could not assign debtor's interest in trust administered in Ohio; <i>Peterson v. Islamic Republic of Iran</i> (9th Cir. 2010) 627 F3d 1117, 1130-1132—under Calif. EJI, Iran's rights to payments due from French shipping company were not ‘property in the United States’ and thus were immune from execution under Foreign Sovereign Immunities Act]”].)</p> <p>Creditor also has not shown a general order assigning to Creditor payment rights from individuals and entities not yet ascertained is appropriate in this case. <i>Philippine Export &amp; Foreign Loan Guarantee Corp. v. Chuidian</i> (1990) 218 Cal.App.3d 1058, cited by Creditor, did not deal directly with the issue of whether a blanket order under section 708.510 is appropriate. The case involved the issue of, among other things, whether a foreign government agency was entitled to immunity from execution on its assets located outside the United States. “A case is not authority for a proposition not considered therein or an issue not presented by its own particular facts.” (<i>McConnell v. Advantest America, Inc.</i> (2023) 92 Cal.App.5th 596, 611.)</p> <p>On May 22, 2026, Creditor submitted a supplement to this motion in which it seeks to add an additional entity as a payment source based on information recently received showing Ms. Finger purportedly holds, and/or has signatory authority and control over a Bluevine business checking account maintained in the name of the additional entity. (See ROA 94.) Given Creditor failed to establish Debtor and Ms. Finger are married or when they were married, as discussed above, Creditor also failed to show this new entity should be added as a payment source. Moreover, statements on information and belief are not sufficient to meet Creditor’s evidentiary burden.</p> <p>Based on the foregoing, the motion is <b>DENIED WITHOUT PREJUDICE.</b></p> <p style="text-align: center;"><b><u>Motion No. 2: Motion for Charging Order</u></b></p> <p>Creditor moves for an order charging Debtor’s interest and the interest of his spouse, Ms. Finger, in the same limited liability companies as identified in the motion for</p> |
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